IN THE DISTRICT COURT HELD AT KOFORIDUA THIS SUIT NO. B1/25/23 THURSDAY, THE 17TH DAY OF JUNE 2025, BEFORE HER WORSHIP NANA AMA DABBAH FYNN NKANSAH(MRS)

THE REPUBLIC

VRS

1. ABIGAIL BUSAH
2. DIANA SEYRAM
3. RITA OKYERE

JUDGMENT

This case commenced on the 20th of April, 2023, when the Republic instituted the instant criminal proceedings by the filing a charge sheet containing 4 counts of respective offences which shall be reproduced verbatim as;

COUNT 1

STATEMENT OF OFFENCE

CONSPIRACY TO COMMIT CRIME TO WIT ASSAULT Contrary to Section 23(1) of the Criminal Offences Act, 1960 (Act 29)

PARTICULARS OF OFFENCE

A1,ABIGAIL BUSAH AGED, 33 UNEMPLOYED; A2, DIANA SEYRAM AGED 33, A TRADER; A3 RITA OKYERE DARKO AGED 36, TRADER: - You on 4th April, 2023 at Koforidua in the Eastern Magisterial District and within the jurisdiction of this court, did agree to act together with common purpose to commit crime to wit: Assault.

COUNT TWO

STATEMENT OF OFFENCE

UNLAWFUL ENTRY: -CONTRARY TO SECTION 152 (1) OF THE CRIMINAL OFFENCES ACT, 1960 (ACT 29).

PARTICULARS OF OFFENCE

A2 ,DIANA SEYRAM AGED 33,A TRADER; - You on 4th April, 2023 at Koforidua in the Eastern Magisterial District and within the jurisdiction of this court, you unlawfully entered the room of one Josephine Opoku with intent to commit crime.

COUNT THREE

STATEMENT OF OFFENCE

ASSAULT: -CONTRARY TO SECTION 84 (1) OF THE CRIMINAL OFFENCES ACT, 1960 (ACT 29)

PARTICULARS OF OFFENCE

A1, ABIGAIL BUSAH AGED 33, UNEMPLOYED; A2 DIANA SEYRAM AGED 33, A TRADER; A3 RITA OKYERE DARKO AGED 36, TRADER: - You on 4TH April, 2023 at Koforidua in the Eastern Magisterial District and within the jurisdiction of this court, you unlawfully assaulted one Josephine Opoku.

COUNT FOUR

STATEMENT OF OFFENCE

CAUSING UNLAWFUL DAMAGE: -CONTRARY TO SECTION 172 (1) OF THE CRIMINAL OFFENCES ACT, 1960 (ACT 29).

PARTICULARS OF OFFENCE

DIANA SEYRAM AGED 33, A TRADER: - You on 4th April, 2023 at Koforidua in the Eastern Magisterial District and within the jurisdiction of this court, you intentionally and unlawfully caused damage to a Nasco 32 inches flat screen TV valued One thousand Five Hundred Ghana Cedis(GHC1500.00), One West Pool Fridge valued Two Thousand Ghana Cedis (GHC 2000.00), One Microwave valued One Thousand and Seventy Nine Ghana Cedis(GHC 1079.00), One Centre Table valued Two Hundred and Fifty Ghana Cedis(GHC 250.00), One Tripple Wireless Speakers valued One Hundred And Sixty Ghana Cedis (GHC 160.00), Two Ceramic Mugs valued Fifty Ghana Cedis(GHC 50.00), One Mounted Wall Glass valued Seventy Ghana Cedis (GHC70.00),Set of Wine Glasses valued One Hundred And Forty Ghana Cedis (GHC 140.00), Indoor Antena valued Sixty Five Ghana Cedis (GHC 65.00),One Mirror valued Fifty Ghana Cedis(GHC 50.00) all totaling Five Thousand Three Hundred And Sixty Four (GHC 5,364.00) the property of Josephine Agyemang.

BRIEF FACTS

Complainant Josephine Opoku Agyemang aged 31years, is a Beautician, A1 Abigail Busah aged 33years, is unemployed, both are residents of Betom, Koforidua. A2 Diana Seyram aged 33years, is a trader and resides at Acheampong a suburb of Koforidua and A3 Rita Okyere Darko aged 36years, is a trader and resides at Osabene, Koforidua. The complainant and Al are both tenants in the same house at Betom, Koforidua and they have a long-standing feud between them. Al and A2 are siblings whilst A3 is their friend.

On 4th April, 2023 at about 7:00am Al invited A2 and A3 to her twins outdooring ceremony held in their house. After the outdooring ceremony A2 and A3, decided to stay over for an after party. During the after party, at about 9:30pm, the complainant returned from work and met Al, A2 and A3 sitting in front of the house conversing and having fun. The complainant then casted insinuations at Al while she was passing by to her own room. This generated a heated argument between the complainant and A1. The complainant quickly went to her room and closed her door.

A2 who was extremely angry and impatient with complainant's reaction, decided to confront her on behalf of her sister Al. While the complainant was still in her room, A2 forced open the door and entered. This again resulted in a heated argument and subsequently a fight broke out between the complainant and A2 inside the room of the complainant. Al and A3 upon seeing that the complainant was engaged in a fight with A2, decided to support A2 to fight the complainant. In the process, the complainant took a beer bottle and hit A2's head resulting in a head injury.

After that, witnesses came to separate the fight and took the complainant away from the scene. A2 now became more aggressive and looked around in search of the complainant to continue the fight with her but she failed to locate her. This infuriated A2 and she entered the complainant's apartment and caused damage to her Nasco 32 inch flat screen TV valued One thousand Five Hundred Ghana CedisGHC 1500.00), One West Pool Fridge valued Two Thousand Ghana Cedis (GHT 2000.00), One Microwave valued One Thousand and Seventy Nine Ghana Cedis(GHC1079.00), One Center Table valued Two Hundred and Fifty Ghana Cedis (GHC250.00), One Tripple Wireless Speakers valued One Hundred And Sixty Ghana Cedis (GHC160.00), Two Ceramic Mug valued Fifty Ghana Cedis(GH@50.00), One Mounted Wall Glass valued Seventy Ghana Cedis (GHC70.00), Set of Wine Glass valued One Hundred And Forty Ghana Cedis (GHC140.00), Indoor Antena valued Sixty Five Ghana Cedis (GH 65.00), One Mirror valued Fifty Ghana Cedis (GH(50.00) all totaling Five Thousand Three Hundred and Sixty Four Ghana Cedis

(GH(5,364.00). this destruction of property took place in the presence of the complainant's son who was left in the room. After the incident the complainant came to the Police station to lodge a complaint of assault. During investigations, she was issued with medical forms to attend hospital. A2 was arrested and she was also issued with Police Medical Report Form to also attend hospital and report. Based on Police investigations all the accused persons were arrested and investigation caution statements were obtained from them.

BURDEN OF PROOF/BURDEN OF PERSUASION

Before assessing the evidence before the Court, I shall briefly reiterate the burden of proof required, in the light of the evidence adduced to prove the charge, first on the part of the prosecution, and then where the burden shifts, on the accused person, in the
circumstances of this case by way of the evidence mounted.

The required standard of proof is codified under the Evidence Act (NRCD 323) in at least three sections; Sections 11(2), 13(1) and 22 which are reproduced below;

"11(2) In a criminal action the burden of producing evidence, when it is on the prosecution as to any fact which is essential to guilt, requires the prosecution to produce sufficient evidence so that on all the evidence a reasonable mind could find the existence of the fact beyond reasonable doubt."

"13 (1) In any civil or criminal action the burden of persuasion
as to the commission by a party of a crime which is directly in
issue requires proof beyond reasonable doubt."

"22. In a criminal action a presumption operates against the accused as to a fact which is essential to guilt only if the existence of the basic facts that give rise to the presumption are found or otherwise established beyond reasonable doubt, and thereupon, in the case of a rebuttable presumption, the accused need only raise a reasonable doubt as to the existence of the presumed fact."

In the book, Essentials of the Ghana Law of Evidence, S.A Brobbey deals extensively with the standard of proof required in criminal trials from pages 48 to 55. He states inter alia at pages 50 and 51;

"Proof beyond reasonable doubt does not mean that there should be no doubt whatsoever in the case presented by the prosecution. It means that by the end of the trial, the prosecution must prove every element of the offence or the charge (but not all the facts) and show that the defence is not reasonable.....

The consideration for the principle of proof beyond reasonable doubt can be illustrated this way: If there is any element of the charge which is essential for the accused to be convicted, that element should be established to the satisfaction of the trier of facts in such a manner that a reasonable mind could conclude that the accused is guilty of the offence or that the existence of the facts constituting the charge is more probable than its non-existence."

What does proof beyond reasonable doubt really entail?

In the case of **OSEI V. THE REPUBLIC |2009124 MLRG 203, C.A**; it was held, confirming the long- held view that "proof beyond reasonable doubt does not mean proof beyond a shadow of doubt. The Court would fail to protect the community if it admitted fanciful possibilities to deflect the course of justice. If the evidence is so strong as to leave only a remote possibility in his favour which can be dismissed with the sentence, 'of course it is possible, but not at all probable', the case is proved beyond
reasonable doubt, but nothing short of that will suffice."

PROSECUTION'S CASE

PW1, the complainant, testified that on 4th April 2023, at approximately 9:00 p.m., after returning from work, she arrived home and found the accused persons seated in front of her residence. According to her account, the accused began verbally assaulting her, uttering derogatory statements including, "*Kakai*," "*dirty mouth*," and "*you look like a dead woman*." PW1 stated that upon entering her room, the accused persons intensified their verbal abuse and began forcefully banging on her door, shouting that "today they have come and are fully prepared."

Fearing for her safety, PW1 placed a phone call to a friend, one Sarah Pomaah, requesting her presence at the house. She stated that shortly thereafter, the accused persons forcibly entered her room, physically assaulted her, and dragged her outside to the compound where they continued to subject her to severe beatings.

PW1 further testified that it was the intervention of her friend and neighbours that led to her rescue. She subsequently reported the matter to the Police. However,

during her absence, the accused persons allegedly re-entered her room and caused extensive damage to her personal property.

The damaged items, as enumerated by PW1, included a West Pool refrigerator valued at GH¢2,000.00, a NASCO television set valued at GH¢1,500.00, a microwave oven valued at GH¢1,079.00, a centre table valued at GH¢160.00, two ceramic mugs valued at GH¢50.00, a mounted wall glass valued at GH¢70.00, a set of wine glasses valued at GH¢140.00, an indoor antenna valued at GH¢65.00, and a mirror glass valued at GH¢50.00. The total estimated cost of the damaged property amounted to GH¢5,364.00.

PW2, Caleb Agyeman Nkansah, an eight-year-old child and the son of the complainant (PW1), testified that he was present in the room at the time the alleged incident occurred. He stated that on the day in question, as he entered the room with his mother, he heard someone outside remark, "Sherry Toy is coming."

He further testified that upon their entry into the room, he heard individuals directing insults at his mother, to which she responded, leading to a verbal exchange between the parties. According to PW2, a woman identified as Sarah attempted to intervene and de-escalate the situation, but her efforts proved unsuccessful.

PW2 further recounted that during the ensuing altercation, a woman dragged his mother (PW1) on the floor. In an apparent act of self-defence, PW1 struck the said woman on the forehead with a broken bottle.

PW3 testified to the effect that she is the friend of PW1 who she called for help. She testified that on getting to the scene A2 almost hit her with a cookware and A1

intervened. That later one Seth assisted PW1 to run away and PW2 informed PW1 that A2 had caused damage to everything in the room.

The investigator, G/CPL Sibichan Dacosta of Koforidua Central Police testified as the PW4 and merely tendered in evidence the respective caution statements of the Accused persons and stated that his investigations revealed that A2 caused damage to the items listed in the facts and also that the Accused persons fought the complainant.

At the end of the Prosecution's case, the court found that the prosecution has established a prima facie case against the accused persons. The court therefore called upon the accused to open their defence in accordance with section 174 of the Criminal Procedure Code, 1960, Act 30 which states "*At the close of the evidence in support of the charge, if it appears to the court that a case is made against the accused sufficiently to require the accused to make a defence, the court shall call on the accused to make a defence and shall remind the accused of the charges and inform the right of the accused to give evidence personally on oath or to make a statement*". The court also reminded the accused of the charges against them, and their right to either make a sworn statement, an unsworn statement or not to make any statement at all. The Accused persons thereby informed the court of their decision not to make any statement at all which brought the proceedings to an end.

In evaluating the evidence led by the prosecution in relation to the offences as charged, I shall firstly discuss Counts 1 and 3 together which are Conspiracy to Assault and Assault respectively contrary to Sections 23 and 84 of Act 29.

In the case of **FAISAL MOHAMMED AKILU v. THE REPUBLIC (SC) (Unreported) Criminal Appeal NO. J3/8/2013 dated 5th July, 2017** , the Supreme Court per Appau JSC, in a unanimous decision stated at page 313 of the report;

From the definition of conspiracy provided under section 23(1) of Act 29/60, a person can be charged with the offence even if he did not partake in the accomplishment of the said crime, where it is found that prior to the actual committal of the crime, he agreed with another or others with a common purpose for or in committing or abetting that crime…

However, where there is evidence that the person did in fact, take part in the crime, the particulars of the conspiracy charge would read; "he acted together with another or with others with a common purpose for or in committing or abetting a crime." This double-edged definition of conspiracy arises from the undeniable fact that it is almost always difficult if not impossible to prove previous concert in conspiracy cases. Conspiracy could therefore be inferred from the mere act of having taken part in the crime where the crime was actually committed. Where the conspiracy charge is hinged on an alleged acting together or in concert, the prosecution is tasked with the duty to prove or establish each role the alleged conspirators played in accomplishing each the crime."

(Emphases mine)

Assault and battery has been explained under Section 86 thus;

"A person makes an assault and battery on another person, if without the other person's consent, and with the intention of causing harm, pain, or fear, or annoyance to the other person, or of exciting the other person to anger, that person forcibly touches the other person."

From the definition, the elements which Prosecution needs in order to prove in order to maintain a charge of assault and battery are:

1. The Accused forcibly touched the complainant.

2. The touch was without the consent of the complainant.

3. That the touch was intentional

4. That the touch was unlawful.

Thus, this court is duty bound to make a determination as to whether or not the Prosecution was able to prove that the Accused persons purposefully agreed to act together to intentionally touch the complainant with force in an unlawful manner.

Per the brief facts attached to the charge sheet, it is indicated that the complainant and the Accused persons have a long-standing dispute and upon reaching the house on the fateful day, it was the complainant(PW1) who started casting insinuations upon seeing the Accused persons.

Beyond that, PW2 testified that while he entered the room with his mother, as Accused persons insulted the complainant, the complainant also responded, and it resulted in an exchange of abusive words thereby causing the altercation.

Also, it is not in doubt that A2 got injured during the altercation which the facts of the Prosecution clearly indicate. The complainant hit A2 on the head with a bottle which caused multiple lacerations on her scalp. Even though the complainant during her cross examination totally denied hitting A2's head with the bottle, PW2 testified that his mother, the complainant hit the head of a woman with the bottle in self defence and in court, PW2 admitted that the said woman was A2.

From the facts presented by the Prosecution and the evidence adduced, the chain of events reveals a scenario in which the altercation could have been avoided by either party. The sequence suggests that the incident was not entirely one-sided, as it appears improbable that one party would have launched an unprovoked attack without some form of goading or provocation from the other. The circumstances point to a mutual escalation, rather than a unilateral act of aggression.

Thus, the offences of conspiracy to assault and assault against the Accused persons solely have not been discharged and the court is minded, per the evidence to find all 3 accused persons and the complainant guilty of the offences under Section 38 and 207 which states:

38. Unlawful fights

(1) A force used in an unlawful fight cannot be justified under a provision of this Act.

(2) A fight is an unlawful fight in which a person engages, or maintains, otherwise than solely in pursuance of a matter of justification specified in this Chapter.

The justification referred to here is as espoused in Section 31 as follows:

31. Grounds on which force or harm is justified

Force may be justified in the case and in the manner, and subject to the conditions, provided for in this Chapter, on the grounds

(a) of express authority given by an enactment; or

(b) of authority to execute the lawful sentence or order of a Court; or

(c) of the authority of an officer to keep the peace or of a Court to preserve order; or

(d) of an authority to arrest and detain for felony; or

(e) of an authority to arrest, detain, or search a person otherwise than for felony; or

(f) of a necessity for the prevention of or defence against a criminal offence; or

(g) of a necessity for defence of property or possession or for overcoming the obstruction to the exercise of lawful rights; or

(h) of a necessity for preserving order on board a vessel; or

(i) of an authority to correct a child, servant, or other similar person, for misconduct; or

(j) of the consent of the person against whom the force is used.

207. Offensive conduct conducive to breaches of the peace

A person who in a public place or at a public meeting uses threatening, abusive or insulting words or behaviour with intent to provoke a breach of the peace or by which a breach of the peace is likely to be occasioned, commits a misdemeanour.

The court takes judicial notice of the general settlement of compound houses in Betom and the evidence on record to the effect that the insults and altercation caused persons to come around to intervene. Therefore, each of the Accused persons and the complainant is sentenced to a fine of 50 penalty units each for the offence of unlawful fight and 50 penalty units each for the offence of conduct conducive to the breach of peace or 20 days IHL in default.

The next offence on the charge sheet which shall be discussed is that of Count 2 which is Unlawful Entry contrary to Section 152 of Act 29.

This offence is explained under Section 153 of Act 29 as follows:

A person unlawfully enters a building if that person enters otherwise than in the exercise of a lawful right, or by the consent of any other person able to give the consent for the purposes for which that person enters.

The elements to be proven by the Prosecution under this charge is that A2 actually entered the room of the complainant without her consent.

Throughout the evidence of the Prosecution, a common theme that run through the evidence of all prosecution witnesses was that the A2 during the exchange of words

became infuriated and entered the complainant's room. A2 denied this during her cross examination of the Prosecution witnesses. However, the extent of corroboration of this piece of evidence cannot be overlooked and this court finds A2 guilty of having unlawfully entered the room of complainant and sentences her to a fine of 30 penalty units or 10 IHL in default.

The final offence charged the A2 is causing unlawful damage contrary to Section 172 of Act 29. This section is to the effect that the damage should have been intentionally and unlawfully done.

In this case, the burden that lay on the prosecution to discharge was to convince this court that A2 did cause the damage and she did so intentionally and unlawfully.

During the cross examination of PW1 by A2, an excerpt of what ensued is as follows:

'Q: At what time specifically do you claim I entered your room to destroy your items? Is it before I got hurt with the bottle?

A: After the Accused persons beat me up and someone took me out of the scene, they entered my room to destroy my items in the presence of my son, PW2'

From paragraph 5 of the witness statement of PW3, she states in the 2nd line as follows:

…the complainant's son called Caleb informed complainant that Accused person had spoilt everything in the room namely…

Thus from tenor of Prosecution's evidence, the said damage was caused in the presence of PW2 after PW1 had left for the hospital. To the chagrin of this court, the evidence of PW2 does not disclose this damage allegedly caused by A2. His investigation caution statement to the Police does not disclose the damage and who caused it. his witness statement does not disclose the damage and who caused it. Seeing as he was the sole witness of this alleged damage caused by A2, the prosecution

ought to have established through cogent evidence, evidence which would have been given by PW2, that it was A2 and no one else that caused the damage. Yes, there are photographs of the alleged damage on record, but obviously an allegation need to be proven. PW4, the investigator, claimed that his investigation led to the discovery that it was A2 that caused the damage. This assertion is not enough because their evidence or testimonies must corroborate each other's. This means that the investigator's statement that A2 caused the damage stands uncorroborated and per the rules of evidence, I cannot attach any weight to same. therefore, in the estimation of this court, Prosecution had not been able to prove that it was A2 who caused the damage and is accordingly discharged of that offence.

In fine, this case is a cautionary tale on the fact that, actions which are led by anger always have regrettable consequences. The complainant and A1 who are mothers ought to be setting better examples for their children instead of fighting in public. It is shameful to say the least; and I believe that the lessons that all the relevant parties in this case ought to learn, they have learned.